



Syngenta Crop Protection – Dümnen Orange

MN-01109

Phase 1 Determination

Acquisition may be put into effect

20 August 2026

1. Determination and statement of reasons

Notified acquisition	Syngenta Crop Protection AG (SCPAG) and the Dümmen Orange Group (Dümmen Orange) propose to enter a joint venture to combine their global ornamental plant breeding and propagation businesses (the Joint Venture). The Joint Venture will be formed by Watson BidCo B.V. (Dümmen Orange SPV) (holding 50.1% of the shares) and Syngenta Crop Protection AG (SCPAG) (holding 49.9% of the shares) (together, the Parties).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABZE(1) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition may be put into effect.
Parties to the Acquisition	SCPAG is a Swiss agribusiness that operates in the crop protection and seeds markets in Australia and internationally. In Australia, SCPAG operates through its wholly owned subsidiary, Syngenta APP Assets (Syngenta APP), selling and distributing seeds for annuals, perennials, and pot plants. Dümmen Orange is a global horticultural company that operates in breeding and propagation of flowers and plants. In Australia, Dümmen Orange's primary activity is the licensing of plant genetics under the Dümmen Orange brand. Dümmen Orange also supplies cuttings and in vitro materials for annuals, perennials, pot plants and cut flowers.
Overlap between the Parties	The Parties overlap in the sale and distribution of ornamental plants, annual and perennial potted plants and bedding plants for propagation within Australia.
Reasons for determination	When making a determination in Phase 1, the Australian Competition and Consumer Commission (ACCC) undertakes a competition assessment and considers whether it is appropriate for an acquisition to be approved or subject to further assessment in Phase 2 in accordance with section 51ABZJ of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). In doing so, the ACCC must have regard to the object of the Act and all relevant matters, including the interests of consumers. For more information about the ACCC's approach to considering notified acquisitions, see the ACCC's merger assessment guidelines and interim merger process guidelines. In conducting its competition assessment, the ACCC has considered the information and documents that were submitted with the notification form, publicly available information and information from third parties. The ACCC has determined that the Acquisition may be put into effect as it considers that the Acquisition is unlikely to have the effect of substantially lessening competition in any market. In reaching its decision, and based on the material before it, the ACCC makes the following finding: the merged firm would continue to face competition from alternative plant propagators and breeders in Australia.

Applications for review	A notifying party, or other person who has been allowed to do so by the Australian Competition Tribunal, may apply for review if they are dissatisfied with the determination. Pursuant to section 100C of the Act, applications for review of the determination are to be made to the Australian Competition Tribunal before the end of 14 calendar days after this statement of reasons was included on the ACCC's Acquisitions Register. To confirm whether there has been any application for review, please contact the Australian Competition Tribunal.
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**Determination made by Commissioner Williams pursuant to a delegation under section 25(1)
of the Act**